# Durably Sustainability Claims Risk Scan

Methodology summary — how the scan works · Last updated 19 October 2026

Legal basis: the EU Empowering Consumers Directive ("EmpCo", Directive (EU) 2024/825) • the EU Forced Labour Regulation (Regulation (EU) 2024/3015)

This scan is a first-pass screening tool. It is not a legal opinion, a certification or an audit. It reads a company's public sustainability statements and points out wording that may be too vague, may lack supporting evidence, may fall under the EU rules on claims made to consumers, may suggest a stronger guarantee about forced labour in the supply chain than the company can show, or may be contradicted by public information from other sources.

Technical terms are explained where they first appear. A list of all abbreviations and terms is given in Section 11.

## 1. What the scan checks

The scan tests claims against two EU legal frameworks. Wider frameworks for responsible business (last row of the table) are used only as a reference to judge whether social claims are supported by evidence. They are not scored separately.

| Framework | How the scan uses it |
|---|---|
| **EmpCo (Directive (EU) 2024/825)** | EmpCo is the short name for the "Empowering Consumers for the Green Transition" Directive. It is the scan's main framework for green claims. It also covers some social claims: under Article 6(1)(b) of the Unfair Commercial Practices Directive, as amended, claims about environmental or social characteristics (for example wages, safety, human rights, equal treatment, inclusion and diversity) must not be misleading. EU Member States had to put EmpCo into national law by 27 March 2026. The rules apply from 27 September 2026.<br>The scan pays most attention to: generic environmental claims, climate-neutral or offsetting claims, self-made sustainability labels, broad absolute wording, claims about future environmental performance, comparisons, and legal requirements presented as a sustainability benefit. |
| **EU Forced Labour Regulation (Regulation (EU) 2024/3015)** | The scan's main framework for claims about forced labour and supply chains. The Regulation bans products made with forced labour from the EU market. It is about market access and customs checks, not about advertising claims. Article 1(3) confirms that it creates no new due-diligence duty of its own. The scan uses it to flag wording that suggests products, suppliers or supply chains are free from forced labour, or that traceability, due diligence or import and export controls give more assurance than the company can show. The main ban and enforcement rules apply from 14 December 2027. A few governance rules have applied since 13 December 2024. |
| **Unfair Commercial Practices Directive (UCPD): what counts as an environmental claim** | Supports the EmpCo check. The scan looks at whether text, images, symbols, labels, brand names or the way something is presented suggest a positive, zero, reduced, comparative or improved effect on the environment. |
| **Supporting frameworks: OECD Guidelines, UN Guiding Principles (UNGPs), ILO standards, GRI** | Reference points for social and forced-labour claims. The scan checks whether a claim explains how the company identifies, prevents and limits harm to people, and how specific, balanced and evidenced the claim is. The full names are given in Section 11. |

## 2. Potentially prohibited vs. problematic claims (EmpCo)

Every green or social claim the scan keeps also receives one of two labels in the report: **Potentially Prohibited (Annex I)** or **Problematic (case-by-case)**. These labels are a screening indicator, not a legal finding.

| Label | Meaning |
|---|---|
| **Potentially Prohibited (Annex I)** | Annex I of the Unfair Commercial Practices Directive (UCPD) is a list of practices that are always unfair. EmpCo (Directive (EU) 2024/825) added new practices to it. A claim gets this label when its wording looks like one of them:<br>• a sustainability label that is not based on a recognised certification scheme or set up by public authorities;<br>• a generic environmental claim (such as "eco-friendly") that is not clearly specified in the same place and not backed by recognised excellent environmental performance;<br>• a claim that a specific **product** is climate neutral, or has a reduced or positive climate impact, because of offsetting;<br>• a legal requirement presented as a special sustainability feature.<br>From 27 September 2026, these practices are unfair automatically when the conditions are met. No separate test of the effect on consumers is needed. |

| Label | Meaning |
|---|---|
| **What the scan can and cannot confirm** | The scan only recognises the *wording pattern*. It cannot confirm the legal conditions, such as whether the claim is addressed to consumers (a business-to-consumer, or B2C, practice), whether it is about a product, brand or company, whether the specification is clear and prominent in the same place as the claim, and whether the company can show recognised excellent environmental performance. A claim such as “carbon neutral” without a stated scope is treated as a generic claim (point 4a), even when it concerns the whole company. Only wording that names its scope or basis, or is clearly specified in the same place, falls outside this list and is assessed case by case. |
| **Problematic (case-by-case)** | Not on the Annex I list, so not automatically unfair — but not automatically acceptable either. The claim can still be judged misleading after an individual assessment under the general UCPD rules (Articles 6 and 7, or Article 6(2)(d) for claims about future environmental performance).<br>Under Article 12(a) and (b) UCPD (a rule that already existed before EmpCo), national courts and authorities can, where appropriate, ask a company to provide evidence that its factual claims are accurate. If the evidence is not provided or is not good enough, they can treat the claims as inaccurate. Companies should therefore be able to support their factual claims. How this works in practice depends on national procedure. Whether the wording is finally judged misleading depends on the context and the likely effect on consumers. The scan does not decide this. |

**Automatic minimum score.** When at least one green claim is labelled **Potentially Prohibited (Annex I)**, the green score and the overall score are automatically raised to a minimum, whatever the normal calculation in Section 6 gives. The wording match with the fixed Annex I list is an automated indicator, not a confirmed legal finding. It is treated as more serious than a case-by-case claim, and averaging it with the other score components would hide that.

For material aimed at clients or consumers, the minimum is 75/100 (the Very high band), because EmpCo and the UCPD apply most directly there. For material that is mainly investor or internal/governance content, the minimum is lower (about 56–68/100, usually the High band), because the rules reach that material only indirectly.

The rule can only raise a score. If the normal calculation already reaches the minimum, nothing changes. Social claims have no fixed Annex I list (they are assessed case by case, using the Forced Labour Regulation framework in Section 1), so this rule never raises the social score.

## 3. What the scan keeps as a claim

The scan does not simply search for keywords. A word is kept (“retained”) only when the text around it seems to make, suggest or visually imply a claim about environmental or social performance. Neutral mentions such as *working with suppliers* or *backing local suppliers* are not kept, unless they also suggest assurance, compliance, certification, traceability, audits, due diligence or full supply-chain coverage. The scan follows relevant links on the website. When a PDF report (for example an annual or sustainability report) is linked directly from the company’s own site, the scan reads it as well as the web pages.

| Type of claim kept | Examples | Why it matters |
|---|---|---|
| **Generic environmental claims** | eco-friendly, green choice, sustainable product, conscious collection, planet friendly | Can fall under EmpCo when the claim is not clearly explained and supported in the same place. |
| **Climate and offsetting claims** | carbon neutral, climate neutral, carbon compensated, net zero product, reduced climate impact | Product claims of neutral or reduced impact that rely on offsetting are a top EmpCo risk. |
| **Labels, badges, icons** | eco label, green badge, certified sustainable, leaf/planet/recycled icons used as trust marks | A sustainability label that is not based on a recognised certification scheme or set up by public authorities can mislead. |
| **Supplier / sourcing assurance** | responsible sourcing, ethical sourcing, audited suppliers, traceable supply chain, all suppliers comply | May suggest control over the supply chain, audit quality or compliance. This must be backed by evidence on scope, coverage, method and follow-up. |
| **Forced-labour assurance** | forced-labour free, modern-slavery free, no forced labour, product traceability | Companies must be able to support such claims already under the general UCPD rules. Evidence on traceability, risk assessment, prevention and remediation may also matter for enforcement of Regulation (EU) 2024/3015, which does not itself create a separate due-diligence duty (Article 1(3)). |

| Type of claim kept | Examples | Why it matters |
|---|---|---|
| **Aspirational / future social-performance wording** | working towards a foundation for living wages, wish to build a world where human rights are respected, our ambition is... | Vague promises about wages, human rights or working conditions, with no starting point, timeline or achieved result. This is treated as a sign of possible “social washing” (presenting a company as more socially responsible than it is) on that basis alone. It is not treated as proof of how common this pattern is in any sector. |

## 4. Avoiding false alarms on social and forced-labour claims

Words such as *supplier*, *audit*, *human rights* or *compliant* appear all the time in ordinary business writing that is not a sustainability claim. Flagging every occurrence would bury the real risks in noise. A social or forced-labour match is therefore kept only if it passes all the checks below. If it fails any check, it is dropped without notice: it does not appear in the report and has no effect on the score.

| Check | What it filters out |
|---|---|
| **Minimum context length** | A match with fewer than about 35 characters of surrounding text is dropped, because there is too little context to judge whether it is a claim. |
| **Neutral supplier references** | Ordinary mentions such as *supporting local suppliers*, *our suppliers include…* or *become a supplier* are not kept on their own. They count only if the same passage also contains a real assurance or control term: audited, certified, traceable, forced labour, human rights or due diligence. |
| **Requests vs. completed assurance** | Wording that *asks* suppliers to do something (*we ask all our suppliers to sign our code*) is a governance step, not a compliance claim. It is flagged only if the same passage also shows that it has happened, for example a stated compliance rate, “have signed” or “audited”. A mention of “all suppliers” alone is not treated as a claim of assurance. |
| **Future commitments checked for real evidence** | A forward-looking statement about wages, human rights or working conditions (*we are working towards…*, *our ambition is…*) is flagged only when the same or the next sentence gives **no** concrete evidence of a process, such as due diligence, a complaints mechanism or tracking. A commitment backed by real process detail is treated as a supported policy statement, not as empty ambition. Text that sounds like evidence but is about an unrelated topic (for example a sentence on a financial audit after a human-rights commitment) does not count. |
| **Extra support per topic** | Wording on forced labour, human rights, workplace safety and diversity/inclusion each needs an extra strong phrase in the same passage (for example *traceability* next to a forced-labour reference, or *living wage* or *worker rights* next to a human-rights reference). The trigger word alone is never enough. |
| **No claim kept = no inflated score** | If nothing passes these checks, the social score says “No material problematic social claim retained” instead of assuming a risk level. |

These checks are deliberately cautious and are applied before scoring. They reduce noise but are not exhaustive: social or forced-labour wording that is misleading but phrased in an unusual way may be missed. An absence of social claims in the results is therefore not proof that a company’s communication is free of social-washing risk. It only means that no wording matched the scan’s criteria.

## 5. What the report shows for each claim

| Field in the report | Meaning |
|---|---|
| **Source** | The web page, uploaded document or linked page where the wording was found. |
| **Exact wording** | A short passage around the claim, normally one sentence. The scan avoids mixing long paragraphs with isolated words. |
| **Trigger phrase(s)** | The specific words that made the passage relevant, for example carbon neutral, eco-friendly, responsible sourcing or forced-labour free. |
| **Why it matters** | A short explanation of the risk under EmpCo, the Forced Labour Regulation or the need for evidence. |
| **Suggested improvement** | A practical tip for rewriting the claim: state the scope, evidence, method, time period, conditions and limits. |

## 6. How the score is calculated

The scan gives three scores: a **Green score**, a **Social score** and a **Global score** (the overall result). They are **risk scores, not performance scores**. A higher score means a higher exposure to claim risk, or a stronger need for a legal, communication or

evidence review. It does not say how sustainable a company is.

| Component | Weight | What raises the score |
|---|---|---|
| **Claim wording severity** | 50% (main factor) | Wording that matches EmpCo's fixed list of unfair practices (generic claims, offsetting, labels, absolute wording), wording that promises supplier or forced-labour assurance, and several claim signals found together. |
| **Evidence gaps** | 22% | Little visible support for the claim: missing scope, method, dates, verification, supplier coverage or follow-up on problems. |
| **Negative outside context** | 20% | Relevant criticism, allegations, enforcement, lawsuits, concerns from non-governmental organisations (NGOs), unions or regulators, or negative press linked to the same claim area. |
| **Sector and channel** | 8% (adjustment) | Communication aimed at consumers, high-risk supply chains, or sectors where green and social claims face more scrutiny, such as fashion, food, retail, energy, chemicals and logistics. |

The calculation is **deliberately cautious**. A single isolated wording signal normally leads to a limited or medium concern. High or very high scores need a stronger combination of serious wording, evidence gaps, legal relevance and/or negative outside signals that were kept.

| Score band | What it means |
|---|---|
| **0 – 24 Low** | No material problematic claim kept, or only limited wording risk. |
| **25 – 49 Medium** | Some claim signals, wording risks or evidence gaps worth reviewing. |
| **50 – 74 High** | Strong wording risk, evidence gaps and/or negative outside signals. Review these first. |
| **75 – 100 Very high** | Reached either by several serious claim signals together with strong outside or legal context, or automatically for client- or consumer-facing material when a green claim is labelled Potentially Prohibited (Annex I) — see Section 2. For material that is mainly investor or internal/governance content, the automatic minimum is lower and usually lands in the High band. |

## 7. Signals from outside sources

Besides the company's own website, the scan looks for public reports by other parties, such as news media, NGOs, regulators and unions. Each result gets one of the statuses below.

| Status | Meaning and effect on the score |
|---|---|
| **Candidate** | Found automatically, but it did not pass all checks on company match, independence, negative content and relevance. Not shown as a signal and no effect on the score. |
| **Retained** | Passed the automatic checks: it is about this company, comes from an outside source, is negative, and relates to green or social claims. It may influence the context assessment, but a person must check it before it is used outside the company. |
| **Verified** | Checked by a person for the type of source, the link to the company, the date and the relevance to the claim. This is the strongest status in the scan results. |
| **Excluded** | Company-owned sources, positive or neutral news, articles mainly about competitors, duplicates, or results with too little evidence of a link to the company or the claim. No effect on the score. |

## 8. Coverage, confidence and source status

Every page and document the scan reads gets one of the statuses below.

| Source status | Meaning |
|---|---|
| **Retrieved and analysed** | Usable text from the source was included in the analysis (shown as "Reviewed" on the results page). |
| **Retrieved and partially analysed** | Only part of the text from the source was included in the analysis ("Partly reviewed"). |
| **Limited text extracted** | The page or document gave too little usable text for a full assessment, for example because it builds its content with scripts the scan cannot read, or because the text could not be extracted. |
| **Retrieved but not analysed** | The source was fetched, but it was not analysed because the scan reached its limit on how much text it can process. |

| Source status | Meaning |
|---|---|
| **Failed / skipped** | The source could not be opened, was a duplicate, had low relevance, or fell outside the number of pages the scan reads. It does not support any finding. |
| **Excluded as outdated** | The source was retrieved, but it is dated before the screening cut-off (see below) for a company's own communication, so it was not analysed. |

**Confidence** shows how much of the company's communication the scan could read. It reflects the coverage of sources, the quality of the text extraction, access failures, the use of fallback methods, whether claims were found, and whether an external search was done. It is reported separately from claim risk. A low risk score combined with limited coverage must never be read as proof that risky claims are absent.

**Screening cut-off for the company's own communication.** A page or document from the company's own website is left out of the analysis when it is clearly dated before 1 January 2025. "Clearly dated" means a year next to a word such as report, annual or sustainability, in the web address or in the text itself. Sustainability communication changes quickly, so an older report no longer reflects the company's current claims. The cut-off applies only to the company's own pages and documents. It never applies to outside signals (news, NGO, regulator or union coverage, Section 7), which are independent reporting and are reviewed whatever their age.

## 9. Score example

| Illustrative input | Effect on the score |
|---|---|
| **Generic environmental claim aimed at consumers** | Raises claim wording severity. The exact effect depends on the pattern found and the channel. |
| **Missing scope, method and verification** | Raises the evidence-gap risk. |
| **Regulator investigation in the same claim area** | Raises the outside-context risk. Several articles about the same incident count as one incident. |
| **Sensitive sector and consumer channel** | Applies a limited sector and channel adjustment. |
| **Result** | The weighted components are capped at 100 and mapped to the published Low / Medium / High / Very high bands. The example is illustrative, not a fixed list of points for every claim. |

**Worked example** (fictional, for illustration only): a claim scores 65/100 on wording severity, 70/100 on evidence gaps, 30/100 on outside context and 40/100 on the sector and channel adjustment. With the weights from Section 6: 65×50% + 70×22% + 30×20% + 40×8% = 32.5 + 15.4 + 6.0 + 3.2 = 57.1, rounded to **57/100** (High band). This shows how the four components combine. It does not disclose the full internal point schedule, which varies by claim type, channel and the evidence found. If this consumer-facing claim were also labelled Potentially Prohibited (Annex I), the automatic minimum from Section 2 would apply instead, and the score would be at least 75/100, whatever this calculation gives. For material that is mainly investor or internal/governance content, that minimum is lower (see Section 2).

## 10. Limits of the scan

The scan is a structured screening and prioritisation tool. It does not decide whether greenwashing or social washing legally took place. A final assessment needs a person to review the complete communication, the applicable law, the product context, the evidence files, the claim approval process, the language versions and the enforcement practice in the relevant country.

If a website blocks automated access, or gives unusually little text on most pages checked, the report carries a clear data-reliability warning. Under those conditions a low score may reflect limited access to the site's content rather than a real absence of risky claims, and should be treated with caution.

The tool is most useful before publication, a campaign launch, a website update, a packaging change, the release of a sustainability report, or the reuse of a supplier claim. It helps teams find claim passages that should be made more specific, supported with evidence, reworded or escalated.

## 11. Abbreviations and terms explained

| Term | Meaning |
|---|---|
| **Annex I** | The list attached to the UCPD of commercial practices that are unfair in all circumstances (sometimes called the "blacklist"). EmpCo added new practices to it. |
| **B2C** | Business-to-consumer: a company that communicates or sells to consumers. |

| Term | Meaning |
|---|---|
| **Directive / Regulation** | Types of EU law. A directive must be put into national law by each Member State. A regulation applies directly in all Member States. |
| **Due diligence** | The process a company follows to identify, prevent and deal with risks, here mainly risks to people in its supply chain. |
| **EmpCo** | Short name for Directive (EU) 2024/825, the “Empowering Consumers for the Green Transition” Directive. |
| **EU** | European Union. |
| **Greenwashing / social washing** | Presenting a company or product as more environmentally friendly (greenwashing) or more socially responsible (social washing) than it really is. |
| **GRI** | Global Reporting Initiative: a widely used set of standards for sustainability reporting. |
| **ILO** | International Labour Organization: the United Nations agency that sets international labour standards. |
| **NGO** | Non-governmental organisation, for example an environmental or human-rights organisation. |
| **OECD** | Organisation for Economic Co-operation and Development. Its Guidelines for Multinational Enterprises describe what is expected from responsible business conduct. |
| **Offsetting** | Compensating for greenhouse gas emissions by paying for emission reductions or removals elsewhere. |
| **Retained** | Kept by the scan after its checks. A retained claim appears in the results and can affect the score. |
| **Same medium** | In the same place as the claim, for example on the same web page, label or advert. |
| **Traceability** | Being able to follow a product back through the supply chain to where it was made. |
| **UCPD** | Unfair Commercial Practices Directive (Directive 2005/29/EC): the main EU law against misleading and unfair marketing to consumers. |
| **UNGPs** | United Nations Guiding Principles on Business and Human Rights. |

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